



CHAPTER xlv.

An Act to confer further powers on the Rhymney Valley Water Board to extend the time for the completion of an aqueduct to amend the Rhymney Valley Water Act 1921 and for other purposes.
[15th July 1926.]

A.D. 1926.
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WHEREAS by the Rhymney Valley Water Act 1921 (hereinafter called "the Act of 1921") the Rhymney Valley Water Board (hereinafter called "the Board") were constituted and incorporated and empowered to acquire certain water undertakings and works to appropriate the waters of certain streams brooks and springs and to supply water within the limits defined in that Act :

And whereas by the Act of 1921 the Board were authorised to construct (inter alia) an aqueduct for the purpose of utilising the water to be supplied to them in bulk by the Taf Fechan Water Supply Board of which board the Board are a constituent authority :

And whereas by a Bill being promoted in the present session of Parliament by the said Taf Fechan Water Supply Board it is proposed to extend the period for the completion of the Taf Fechan reservoir now being constructed by that board and it is expedient to extend the period for the completion of the said aqueduct so as to be coincident with the period for the completion of the said reservoir :

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And whereas by the Act of 1921 the Board were authorised to levy and demand rates for the supply of water for domestic purposes calculated on the gross estimated rental of the premises supplied and it is expedient to make provision as in this Act contained for the alteration of those rates and charges after the coming into force in the Board's limits of supply of new valuation lists made under the Rating and Valuation Act 1925 and to provide for the collection by the constituent authorities of the Board of any rates and charges due to the Board :

And whereas it is expedient to alter and enlarge the powers of the Board of borrowing or raising money and to enact other provisions as in this Act contained for facilitating the raising of money by the Board on the most economical terms :

And whereas by the Act of 1921 the Board are required to make certain annual or capital payments to the constituent authorities whose waterworks were transferred to the Board by that Act in respect of loans paid off or sums paid out of revenue by those authorities prior to such transfer as stated in the Third Schedule to the Act of 1921 and it is expedient to make provision as in this Act contained with reference to an omission from that schedule of a sum of one thousand and forty-seven pounds nineteen shillings and one penny which had been paid out of revenue by the Bedwellty Urban District Council and of a sum of six hundred and eighty-seven pounds eight shillings and eleven pence which had been paid out of revenue by the Rhymney Urban District Council :

And whereas it is expedient that the other provisions of this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Board for the purposes hereinafter mentioned and such estimates are as follows :—

	£
For provision of additional mains and service pipes - - - - -	25,000
For other waterworks purposes and the general purposes of the Board's undertaking - - - - -	15,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years : A.D. 1926.
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And whereas the provisions of subsection (3) of section 98 of the Act of 1921 relating to the promotion by the Board of Bills in Parliament have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

1.—(1) This Act may be cited as the Rhymney Valley Water Act 1926. Short and collective titles.

(2) The Act of 1921 and this Act may be cited together as the Rhymney Valley Water Acts 1921 and 1926.

2. In this Act the several words and expressions to which meanings are assigned by the Public Health Acts or by the Act of 1921 shall (subject to the provisions of this Act) have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction And unless the subject or context otherwise requires :— Interpretation.

“ The Act of 1921 ” means the Rhymney Valley Water Act 1921 ;

“ The Taf Fechan reservoir ” means the impounding reservoir authorised by and described as Work No. 1 in section 4 of the Merthyr Tydfil Corporation Water Act 1911 the powers for the construction of which reservoir are now vested in the Taf Fechan Water Supply Board ;

“ The Minister ” means the Minister of Health. .

WORKS AND SUPPLY OF WATER.

3. The period limited by section 31 of the Act of 1921 for the completion of the aqueduct conduit or line or lines of pipes authorised by section 29 of that Act which period is described in the said section as being Extension of period for completion of aqueduct.

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A.D. 1926. — the period limited for the completion of the Taf Fechan reservoir shall be deemed to mean the period limited for the completion of the Taf Fechan reservoir as from time to time extended by or under the authority of any Act of Parliament or Order having the force of an Act whether passed before or after the passing of this Act.

As to supply
of water to
portion of
urban dis-
trict of
Bedwellty.

4.—(1) As from the commencement of the supply of water to the Board from the Taf Fechan reservoir the Board shall afford within the portion of the urban district of Bedwellty which is now supplied with water by the Board from the Britannia Colliery a constant and sufficient supply of water obtained either from the Taf Fechan Water Supply Board or from the reservoirs of the Board situate at Rhymney Bridge and shall cease to supply water obtained from the Britannia Colliery.

(2) Prior to the commencement of the supply of water to the Board from the Taf Fechan reservoir the Board shall if it is possible so to do at a reasonable cost substitute wholly or partly for the supply of water from the said Britannia Colliery within the said portion of the urban district of Bedwellty a sufficient and satisfactory supply of water from some other source. Any dispute between the Board and the Bedwellty Urban District Council under this subsection shall be determined by the Minister of Health or an arbitrator to be appointed by him.

For protec-
tion of
Caerphilly
Urban
District
Council.

5. The following provisions for the protection and benefit of the Caerphilly Urban District Council (in this section called "the council") shall except so far as may be otherwise agreed in writing between the Board and the council apply and have effect (that is to say):—

(1) The Board shall construct and for ever thereafter maintain a service reservoir on such land in the Aber Valley as may be agreed between the Board and the council or as failing such agreement may be determined by arbitration under this section to be suitable for the purposes of such reservoir and the said reservoir shall be constructed of a sufficient capacity but in any case not less than six hundred thousand gallons and at such an altitude as that the top water level thereof shall be at least eight hundred and fifty feet above ordnance datum

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so that water delivered to the Board by the Taf Fechan Water Supply Board can be supplied from the said service reservoir to houses situate in those parts of the district of the council which are known as Senghenydd and Abertridwr :

- (2) If statutory powers are necessary for the purpose of enabling the Board to acquire such land and to construct such reservoir the Board shall make application for such statutory powers in the session 1927 :
- (3) The said reservoir shall be completed within the period of two years from the passing of this Act or (if such statutory powers as are referred to in the last preceding subsection are necessary) two years from the date on which such statutory powers are obtained :
- (4) Any difference or question arising between the Board and the council under the provisions of this section or as to anything to be done or not to be done shall be referred to and determined by a single arbitrator to be appointed by the Minister of Health and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

6. Where two or more houses or buildings or parts of one or more houses or buildings connected by any internal means of communication or by any bridge subway yard or passage not being a public highway are in the occupation of one and the same company body firm or person they shall be deemed for the purposes of determining the amount of the water rate chargeable by the Board in respect of any supply of water for domestic purposes furnished by the Board to such houses or buildings or parts thereof (being in such single occupation as aforesaid) to be one tenement having a gross estimated rental equal to the aggregate gross estimated rental of the separate houses or buildings or parts of houses or buildings so occupied.

As to water rate chargeable on two or more houses in one occupation.

7.—(1) The Board shall not be bound to supply with water otherwise than by meter—

Supply to houses partly used for trade &c.

- (a) Any building used by an occupier as a dwelling-house whereof any part is used by the same

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occupier for any trade or manufacturing purpose for which water is required; or

(b) Any workhouse public institution hospital or asylum (whether public or private) sanatorium hotel club assembly hall restaurant public-house or inn; or

(c) Any boarding-house capable of accommodating twenty or more persons including the persons usually resident therein; or

(d) Any school not maintained by the local education authority.

(2) The minimum charge for a supply of water by meter to any of the premises in this section mentioned shall in each quarter of the year be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same gross estimated rental.

Dates for
payment of
water rates.

8. Notwithstanding anything in section 70 of the Waterworks Clauses Act 1847 the Board may demand all rates rents and charges payable to them for the supply of water by half-yearly instalments in advance on the first day of April and the first day of October in each year. Provided that such rates rents and charges shall not be recoverable until the expiration of two months from the said first day of April and first day of October respectively.

Power to
Ministry of
Health to
alter basis
and scale of
water rates.

9.—(1) At any time after the coming into force within the limits of supply of new valuation lists made under Part II of the Rating and Valuation Act 1925 the Minister may on the application of the Board by order amend section 52 of the Act of 1921 by substituting for the scale of rates mentioned in subsection (1) of that section a new scale of rates based on the net annual value of the premises supplied with water and make such adaptations in the provisions of the Act of 1921 as may be consequential on or incidental to the alteration of the basis of the scale of rates and shall fix the date when the new scale of rates shall come into force.

(2) On the coming into force of a new scale of rates in pursuance of an order of the Minister made under

this section this Act shall have effect as if the words "net annual value" were substituted for the words "gross estimated rental" in each place where the latter words occur in this Act. A.D. 1926.

10.—(1) If and so long as any direction given by a resolution of any of the constituent authorities passed under subsection (1) of section 11 (Rating of and collection of rates by owners) of the Rating and Valuation Act 1925 is in force in the constituent area of that authority section 53 (Rates payable by owners of small houses) of the Act of 1921 shall cease to have effect in that constituent area and in lieu thereof the provisions of subsection (2) of this section shall have effect. Rates payable by owners in certain cases.

(2) With respect to every house or part of a house which is included in the class defined by the said resolution of the constituent authority and is supplied with water by the Board the owner instead of the occupier shall (if the Board so determine) pay the rate for the supply of water but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service on him of a notice to pay the rate.

The provisions of this subsection shall be in addition to and not in derogation of the provisions of section 72 of the Waterworks Clauses Act 1847.

11. Any agreement which may be made between the Board and any constituent authority under section 99 (As to collection of rates &c.) of the Act of 1921 may with respect to the whole or any part of the rates and charges which the Board are authorised to levy and take for and in connection with the supply of water within the constituent area of that authority provide for all or any of the following matters :— As to collection of water rates by constituent authorities.

- (i) That the authority may with the consent of the Board levy and recover such rates and charges as though they were payable to the authority and not to the Board;

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- (ii) That the authority may pay the money received in respect of such rates and charges to their own treasurer;
- (iii) That all accounts and records of the authority in respect of such rates and charges shall be audited as part of the accounts of the authority as though the provisions of section 247 of the Public Health Act 1875 (including the auditor's power of disallowance and surcharge) were applicable thereto ;
- (iv) That the authority shall make periodical payments to the Board by way of advance in respect of such rates and charges in such instalments and at such dates as may be agreed ;
- (v) That the authority shall keep a running account with the Board and shall account to the Board for the difference between the sums ultimately ascertained to be due to the Board and the payments made to the Board by way of advance.

FINANCIAL PROVISIONS.

Amendment
of existing
borrowing
powers.

12. Section 78 (Power to borrow) of the Act of 1921 shall have effect as if—

(a) The sum of thirty-five thousand pounds was mentioned in head (b) of the table set out in subsection (1) of that section instead of the sum of ninety-eight thousand four hundred pounds; and

(b) The words “for the purpose of redeeming any
“ stock annuities or other security issued by the
“ Board to the Company or any liability to make
“ any annual payment to any of the constituent
“ authorities under Part III. of this Act or”
and the word “other” in paragraph (a) of subsection (2) of the said section were repealed.

New borrow-
ing powers.

13.—(1) The Board may from time to time borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off

all moneys so borrowed within the respective periods mentioned in the third column of that table namely :— A.D. 1926.

1	2	3
(a) For redeeming any liability to make any annual payment to any of the constituent authorities under section 20 of the Act of 1921 including the annual payments to the Bedwellty Urban District Council and the Rhymney Urban District Council respectively mentioned in paragraph (b) of the section of this Act of which the marginal note is "Amendment of consideration for transfer of water undertakings of Bedwellty and Rhymney Councils"	The sum requisite	The period ending on the 30th September 1951.
(b) For making the payment mentioned in paragraph (a) of the aforesaid section of this Act.	£714 12s. 7d.	The period ending on 30th September 1951.
(c) For redeeming any stock issued in pursuance of clause 4 of the agreement set out in the Second Schedule to the Act of 1921.	The sum requisite	The period ending on the 30th September 1971.
(d) For additional mains and service pipes.	£25,000	Forty years from the date or dates of borrowing.
(e) For other waterworks purposes and the general purposes of the undertaking.	£15,000	Thirty years from the date or dates of borrowing.
(f) For paying the expenses properly incurred from time to time for the purpose of borrowing or re-borrowing on mortgage any sums which the Board are authorised to borrow under any statutory borrowing power.	The sum requisite	Five years from the date or dates of borrowing.
(g) For paying any sums payable by the Board under the final section of this Act.	The sum requisite	Five years from the passing of this Act.

Provided that the total sum which may be borrowed by the Board under paragraph (f) of the above table for paying the expenses so incurred with respect to any particular statutory borrowing power shall not exceed one per centum of the total amount of so much of that borrowing power as is exercised by borrowing on mort-

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A.D. 1926. — gage Provided also that the powers of the said paragraph (f) shall not be exercised for paying expenses incurred for the purpose of borrowing or re-borrowing any sum which the Board are required to repay within a period of less than five years from the date of borrowing or re-borrowing.

(2) In order to secure the repayment of the money borrowed or re-borrowed under this Act and the payment of the interest thereon the Board may mortgage or charge the revenues of the Board.

Incorporation of financial sections of Act of 1921.

14. With respect to the powers of borrowing conferred on the Board by this Act the sections of the Act of 1921 hereinafter mentioned with any necessary modifications shall be incorporated with and form part of this Act (that is to say) :—

Section 79 Mode of raising money;

Section 80 Provisions of Public Health Act 1875 as to mortgages to apply;

Section 81 Mode of payment off of money borrowed;

Section 84 Protection of lender from inquiry;

Section 86 Appointment of a receiver;

Section 87 Power to re-borrow;

Section 91 Application of money borrowed.

Consolidated loans fund.

15.—(1) Notwithstanding anything in any other Act the Board may if they think fit as from the thirty-first day of March nineteen hundred and twenty-seven or as from any succeeding thirty-first day of March establish a fund to be called "the consolidated loans fund" to which shall be paid as and when they are received :—

(a) All moneys borrowed by the Board either on the issue of stock or debentures or the creation of mortgages or other security or without security in connection with the exercise of any statutory borrowing power ;

(b) All moneys of a capital nature received by the Board whether from the sale of capital assets or otherwise except such as are applied by the Board with due authority to another capital purpose ;

- (c) The appropriate sums provided in each year out of the revenues of the Board to comply with the terms and conditions as to repayment attaching to their several borrowing powers; and
- (d) A sum or sums equal to the aggregate amount of all dividends or interest payable in each year on the stock debentures mortgages or other securities issued in exercise of the statutory borrowing powers of the Board and remaining outstanding:

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And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except of such moneys (if any) as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Board as aforesaid before the thirty-first day of March as from which date the consolidated loans fund shall be established.

(2) The moneys of the consolidated loans fund shall subject as hereinafter provided be used or applied by the Board—

- (a) In the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Board; or
- (b) In the redemption of stock debentures mortgages or any other securities issued or granted by the Board or of any liability referred to in paragraph (a) of subsection (1) of the section of this Act of which the marginal note is “New borrowing powers” or in the purchase of stock for extinction or the repayment of any moneys borrowed by the Board; or
- (c) In the payment of dividends and interest on the stock debentures mortgages or other securities issued in the exercise of the statutory borrowing powers of the Board and remaining outstanding; or
- (d) For such other purposes as the Minister may from time to time approve:

And any moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory

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A.D. 1926. securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock and debentures of and loans to the Board and the dividends and interest thereon shall be charged indifferently on all the revenues of the Board and shall rank equally one with the other without any priority whatsoever.

(4) Save as in this section expressly provided all the obligations of the Board to the holders of stock debentures or other securities of the Board shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Board except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matter incidental to the establishment and administration of the consolidated loans fund.

Scheme for
fixing
equated
periods.

16.—(1) The Board may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under a statutory borrowing power shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may apply to any such loans all or any of the provisions of this Act in regard to the borrowing and repayment of money with or without modification and may make provision in regard to all matters incidental to the objects aforesaid.

(2) No scheme made by the Board under this section shall have any force or effect until confirmed by the Minister who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the power of this Act.

(3) Nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder

of any stock existing at that time except with the consent of such mortgagee or holder. A.D. 1926.

(4) The loans referred to collectively in any scheme under general headings in accordance with a classification approved by the Minister may be consolidated and dealt with in the accounts of the Board as if the aggregate amount of the several loans relative to each heading were one loan raised under one statutory borrowing power and if approved by the Minister separate consolidations may be made of all or any of the loans included under such general headings.

(5) The Board may with the sanction of the Minister and on the security of the revenues of the Board borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Board for their consent thereto and any moneys so borrowed shall be repaid within such period as the Minister may sanction.

(6) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

17.—(1) Notwithstanding anything in any other Act relating to the Board where the Board have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section. Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Board and may be made in the form set out in the schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Board at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of

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A.D. 1926. this Act charged indifferently upon all the revenues of
— the Board.

(5) Nothing in this section shall alter or affect the obligations of the Board to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods within which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section shall alter or affect the obligations of the Board to provide for the payment of interest upon the sums secured by mortgages granted under this section.

(7) There shall be kept at the office of the Board a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

Every such register shall be open to inspection by any mortgagee or other person entitled to any mortgage granted under this section during office hours at the said office without fee or reward and the clerk refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form set out in the schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Board a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment to him of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Board shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby. A.D. 1926.
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(11) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

18.—(1) Every deed of transfer of any mortgage of the Board whether granted under the immediately preceding section of this Act or otherwise shall relate only to the transfer and shall not contain any recital trust power or proviso whatsoever. Provisions as to transfers of mortgages.

(2) The Board before registering any such transfer may if the circumstances appear to them to make it expedient require evidence of the title of any person claiming a right to make the transfer.

(3) That evidence shall be a statutory declaration of one or more competent persons or of such other nature as the Board may require.

19. It shall not be obligatory on the Board to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any security of the Board (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the clerk of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited. Evidence of transfer or transmission of securities.

20. Where more persons than one are registered as joint owners of any mortgage debenture or other security of the Board any one of them may give an effectual Interest on securities held jointly.

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Receipt in
case of
persons not
sui juris.

21. If any money is payable to a mortgagee or the holder of any stock debenture or other security of the Board being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Board.

Sinking
fund.

22.—(1) If the Board determine to repay by means of a sinking fund any moneys borrowed after the passing of this Act by virtue of any statutory borrowing power such sinking fund shall be formed and maintained by payment to the fund throughout the period prescribed for the repayment of the money so borrowed (hereinafter referred to as “the prescribed period”) of either—

(a) Such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) (i) Such equal annual sums as would with accumulations at a rate not exceeding three and a half per centum per annum or such higher rate as the Minister may from time to time approve be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed; and

(ii) Such annual sums as are equivalent to interest on the amount which should from time to time be standing to the credit of the fund at the rate per centum on which the annual payments to the fund under paragraph (i) hereof are based:

A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund shall (subject to the provisions of section 83 (Power to use sinking fund instead of borrowing) of the Act of 1921) unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Board being at liberty from time to time to vary and transpose such investments.

(3) All interest on the investments of a sinking fund shall be carried by the Board to the credit of the revenues of the Board. A.D. 1926.

(4) The Board may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Board shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this section shall be paid by the Board in addition to the payments provided for by this section.

(6) If it appears to the Board at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this section together with the probable accumulations thereon (if an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Board to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister that any such increase is necessary the Board shall increase the payments to such extent as the Minister may direct.

(7) If the Board desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(8) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this section together with the probable accumulations thereon (if an accumulating sinking fund) will in the opinion of the Minister be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Board may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the prescribed

A.D. 1926. — period the money for the repayment of which the sinking fund is formed.

(9) If the amount in any sinking fund at any time together with the probable accumulations thereon (if an accumulating sinking fund) will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Board may with the consent of the Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(10) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Board with the consent of the Minister may determine.

(11) The foregoing provisions of this section shall also apply with respect to any sinking fund formed by the Board for the repayment of any moneys borrowed before the passing of this Act under any statutory borrowing power and the Board shall make such adjustments of any existing sinking fund and of their books and accounts relating thereto as the Minister may sanction or require.

As to interest on and payments to sinking funds &c.

23. Where sums are set apart as or appropriated to a sinking fund or stock redemption fund for the purpose of paying off moneys borrowed or stock or debentures issued by the Board in the exercise of their powers under the Act of 1921 and this Act the interest received in any year from the investment of the sums so set apart or appropriated shall instead of being accumulated in accordance with the provisions of the said Acts or either of them or the Stock Regulations 1891 to 1921 form part of the revenues of the Board for that year and be paid into the general revenue account of the Board but the contribution to be made to the sinking fund or stock redemption fund (if it is an accumulating fund) out of the revenues of the Board shall in that year include a sum equivalent to interest on the amount which should for the time being be standing to the credit of the fund and on the amount (if any) previously applied from the fund in or towards the discharge of the money for the repayment of which the fund is formed and such interest shall be calculated at the rate per centum per annum on which the annual payments to the fund are based.

24. Notwithstanding anything in the Act of 1921 or this Act the Board may use for the purpose of any statutory borrowing power exercisable by them any moneys forming part but not for the time being required for the purposes of any reserve fund of the Board (in this section referred to as "the lending fund") subject to the following conditions:—

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Use of
moneys
forming part
of reserve
fund.

- (1) The moneys so used shall be repaid to the lending fund out of the revenues of the Board within the period and by the methods within and by which a loan raised under the statutory borrowing power would be repayable. Provided that the Board shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the revenues of the Board or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power:
- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Board to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and such interest shall be paid out of the revenues of the Board:
- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provision of any enactment as to reborrowing of sums raised under the statutory borrowing power shall apply accordingly.

25. Any constituent authority may with the consent of the Minister lend to the Board such sum or sums on such terms and conditions and in such form as may be agreed between the Board and the constituent authority:

Power to
constituent
authorities
to lend
money to
the Board.

Provided that the consent of the Minister shall not be necessary if a constituent authority proposes to lend to the

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A.D. 1926. Board any sum or sums of money for any period not exceeding twelve months.

Power to
Board to
lend money
temporarily
to con-
stituent
authorities.

26. The Board may from time to time lend for any period not exceeding twelve months or with the consent of the Minister for any longer period to any constituent authority any sum of money which is not for the time being required for the purpose for which it was raised and the same shall be lent on such terms and conditions and in such form as may be agreed between the constituent authority and the Board.

Return to
Minister of
Health with
respect to
repayment
of debt.

27.—(1) The clerk shall if and when he is requested by the Minister so to do send to the Minister a return showing the provision made for the repayment of any loans raised by the Board in pursuance of any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the clerk or other the chief accounting officer of the Board and shall be sent within one month after the making of the request and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Board have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Board shall notify the Minister

as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court. A.D. 1926.
—

28.—(1) After the coming into force in any constituent area of the first new valuation list made under the Rating and Valuation Act 1925 (in this Act called “the Act of 1925”) the rateable value of that constituent area shall for the purpose of the apportionment of any deficiency in the net revenue of the Board of any year or half-year under section 92 of the Act of 1921 as amended by this Act be substituted for the assessable value of that constituent area as defined in section 4 of the Act of 1921 and amended by this Act. As to apportionment of deficiency in net revenue.

(2) In this section the rateable value of a constituent area means (except as provided by subsection (3) hereof) the total rateable value of the hereditaments in that area ascertained in accordance with the Act of 1925.

(3) If and so long as the constituent areas are not all in one and the same assessment area under the Act of 1925 the Board in order to secure so far as possible uniformity of assessment between the several constituent areas for the purpose of the apportionment of any such deficiency as aforesaid may (if they think fit) themselves determine the rateable value of each constituent area. Provided that if there is any dispute between the Board and any constituent authority as to whether the rateable value of any constituent area determined by the Board under this subsection is fair and proper the dispute shall be referred for settlement to the Minister or an arbitrator appointed by him and if a central valuation committee shall have been constituted in accordance with section 57 of the Act of 1925 the Minister or the arbitrator shall consult such committee in the matter of the dispute and the rateable value of such constituent area for the purpose aforesaid shall be such as may be determined by the Minister or the arbitrator.

The provisions of this subsection shall cease to be in force after the thirty-first day of March nineteen hundred and thirty-three unless they shall have been continued by Act of Parliament or Provisional Order made by the Minister and confirmed by Parliament.

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MISCELLANEOUS.

Superannua-
tion fund.

29.—(1) The Board shall be deemed to be a local authority within the meaning of the Local Government and other Officers' Superannuation Act 1922 and for the purposes of that Act the area of the Board shall be deemed to be the limits of supply defined in the Act of 1921.

(2) The Board may accordingly subject to the provisions of the said Act of 1922 either by themselves or in combination with any local authority as defined in that Act adopt the Act or (subject to the provisions of section 5 of that Act) enter into combination for the purposes of that Act with any local authority as so defined.

Subscrip-
tions to
associations
and pay-
ment of
certain
expenses.

30. The Board may pay out of their revenues as expenses incurred by them under the Act of 1921 and this Act :—

(a) Reasonable subscriptions (whether annually or otherwise) to the funds of any association of water boards or other water undertakers formed for the purpose of consultation as to their common interests and the discussion of matters relating to water supply or of the officers of any such undertakers or to the funds of any scientific or other society or body (not carrying on business for profit) which or the members of which are engaged in investigations or the keeping of records of use or value to water undertakers and any reasonable expenses of the attendance of any members or officers of the Board (not exceeding in any case four) at conferences or meetings of any such association society or body and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;

(b) Reasonable expenses in connection with the public opening of works of the Board or works from which the Board are entitled to a supply of water and in connection with visits by the members officers or employees of the Board to the works of other water undertakers or by the members officers or employees of other water

undertakers or of county or local authorities to the works of the Board : A.D. 1926.

Provided that the amount expended by the Board under this section shall not in any one year exceed one hundred pounds except with the consent of the Minister.

31. Every person who shall wilfully (without the consent of the Board) or negligently close or shut off any valve cock or other work or apparatus belonging to the Board whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Board) be liable to a penalty not exceeding five pounds and the Board may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe. Penalty for closing valves &c.

32. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Board who shall without the authority of the Board turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Board and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 of the Waterworks Clauses Act 1847 and that section shall extend and apply accordingly. Extension of section 60 of Waterworks Clauses Act 1847.

33. The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Board be read and construed as if the one-tenth part of the expense of providing and laying down pipes mentioned in that section were one-sixth part of such expense and as if the period of three years mentioned in that section were five years. Amendment of section 35 of Waterworks Clauses Act 1847.

34. Section 57 (Notice to be given of contracts to the amount of one hundred pounds and upwards) of the Commissioners Clauses Act 1847 shall cease to apply to the Board and to be incorporated with the Act of 1921. Exclusion of section 57 of Commissioners Clauses Act 1847.

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—
Meaning of
assessable
value in Act
of 1921.

35. The Act of 1921 shall have effect and be deemed always to have had effect as if the following words were added at the end of the definition of "assessable value" in section 4 (Interpretation) of that Act (namely) :—

"after taking into account the reduced net annual value provided for by section 211 (1) (b) of the Public Health Act 1875 as amended by the Public Health (Rating of Orchards) Act 1890 and the Allotments Rating Exemption Act 1891 but before taking into account the reduced net annual value provided for by section 211 (1) (a) of the Public Health Act 1875."

Nothing in this section shall affect the operation of the section of this Act of which the marginal note is "As to apportionment of deficiency in net revenue."

Extension
of period for
taking water
of Llanbra-
dach Brook.

36. Section 77 (For protection of Llanbradach Estate and Cardiff Collieries Limited) of the Act of 1921 shall have effect as if the words "seven years" were inserted therein in substitution for the words "six years" in both places where the last-mentioned words occur.

Amendment
of considera-
tion for
transfer of
water under-
takings of
Bedwellty
and
Rhymney
Councils.

37. With respect to the sum of one thousand and forty-seven pounds nineteen shillings and one penny which had been paid by the Bedwellty Urban District Council (hereinafter called "the Bedwellty Council") out of revenue for capital purposes in respect of the portion of their water undertaking which was by the Act of 1921 transferred to the Board and with respect to the sum of six hundred and eighty-seven pounds eight shillings and elevenpence which had been paid by the Rhymney Urban District Council (hereinafter called "the Rhymney Council") for capital purposes in respect of their water undertaking in addition to the respective sums so paid out of revenue by those respective councils as stated in column 3 of Part II. of the Third Schedule to the Act of 1921 the following provisions shall have effect :—

(a) The Board shall within three months after the passing of this Act pay to the Bedwellty Council

in cash the sum of seven hundred and fourteen pounds twelve shillings and sevenpence which sum shall be applied by the Bedwellty Council in such manner as the Minister may direct; and

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- (b) The Act of 1921 shall have effect as if in columns 2 3 4 and 5 of Part II. of the said Third Schedule the particulars hereinafter mentioned were inserted with reference to the Bedwellty Council and the Rhymney Council in addition to the particulars already stated in Part II. of that schedule with reference to those councils viz. :—

1 Constituent Authority.	2 Loans paid off at appointed day.	3 Amounts paid on revenue account.	4 Aggregate of 2 and 3.	5 Annuity payable by Board.
	£	£ s. d.	£ s. d.	£ s. d.
Bedwellty Council -	—	333 6 6	333 6 6	23 13 0
Rhymney Council -	—	687 8 11	687 8 11	48 15 6

Provided that the period during which the respective annuities stated in the last column of the above table shall be payable to the Bedwellty Council and the Rhymney Council respectively by the Board shall (notwithstanding anything in subsection (1) (b) of section 20 of the Act of 1921) be twenty-five years from the thirtieth day of September nineteen hundred and twenty-six instead of thirty years from the appointed day as defined in the Act of 1921.

38. The following provisions of the Act of 1921 are Repealed hereby repealed :—

Section 54 (Dates for payment of water rates &c.)
The whole section.

Section 62 (Supply to houses partly used for trade &c.) Subsection (1).

Section 82 (Sinking fund) The whole section.

Section 90 (Return to Minister of Health as to repayment of debt) The whole section.

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Miscella-
neous
amend-
ments of
Act of
1921.

39. The Act of 1921 is hereby amended as follows and shall have effect accordingly (that is to say) :—

- (1) In the proviso to subsection (1) (b) of section 20 (Consideration for transfer of water undertakings of constituent authorities) the words “at any time by agreement with the constituent authority or” shall be inserted after the words “it shall be lawful for the Board”;
- (2) In section 37 (Powers in relation to water mains) the following words shall be inserted at the end of the section viz. :—

“In the application to the Board of section 16 of the Public Health Act 1875 the term “surveyor” in that section shall mean and be deemed to refer to the engineer of the Board”;
- (3) In subsection (1) of section 92 (Apportionment of deficiency in net revenue of Board) the words “year or half-year as the Board may determine” shall be substituted for the word “half-year” where that word first occurs in that subsection and the words “year or” shall be inserted before the word “half-year” where that word secondly and thirdly occurs in the said subsection;
- (4) In subsection (2) of the said section 92 the words “fourteen days” shall be substituted for the words “one month” the words “year or” shall be inserted before the word “half-year” in each place where that word occurs in the said subsection and the words “from the receipt of such precepts” shall be substituted for the words “after the commencement of the half-year”;
- (5) In subsection (5) of the said section 92 the words “unless the Board otherwise determine” shall be inserted before the words “bear interest” and the words “six per centum” shall be substituted for the words “ten per centum”;
- (6) In section 96 (Power to apply funds for certain purposes) the words “outside the district of

the constituent authority by whom they are appointed" shall be repealed; A.D. 1926.

(7) In section 97 (Accounts and audit) the word "yearly" shall be substituted for the word "half-yearly" the words "the thirtieth day of September" shall be repealed and the word "date" substituted for the word "dates";

(8) In paragraph (1) of Part II. of the First Schedule the words "or May" shall be inserted after the word "April."

40. The following sections of the Act of 1921 are incorporated with this Act and shall apply as if the same with necessary modifications were set out in this Act :—

Application
of mis-
cellaneous
sections of
Act of 1921.

Section 103 (Inquiries by Ministry of Health);

Section 105 (Justices not disqualified);

Section 107 (Recovery of penalties &c.);

Section 108 (Recovery of demands);

Section 110 (Application of penalties);

Section 111 (As to notices).

41. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board out of the revenues of the Board or out of money to be borrowed under this Act for that purpose.

Costs of
Act.

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The SCHEDULE referred to in the
foregoing Act.

FORM OF MORTGAGE.

RHYMNEY VALLEY WATER BOARD.

By virtue of the Rhymney Valley Water Act 1926 and of other their powers in that behalf them enabling the Rhymney Valley Water Board (hereinafter referred to as "the Board") in consideration of the sum of _____ pounds (hereinafter referred to as "the principal sum") paid to the Board by _____ (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Board as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of _____ per centum per annum from the _____ day of _____ one thousand nine hundred and _____ until payment of the principal sum such interest to be paid half-yearly on the _____ day of _____ and the _____ day of _____ in each year The first payment of interest to be made on the _____ day of _____ one thousand nine hundred and _____. And it is hereby agreed that the principal sum shall be repaid at the offices of the Board [(subject as hereinafter provided) on the _____ day of _____ one thousand nine hundred and _____.]
[by _____]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Board and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the chairman and clerk of the Board for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Board have caused their common seal to be hereunto affixed this _____ day of _____ one thousand nine hundred and _____

Chairman.
Clerk.

THE ENDORSEMENT WITHIN REFERRED TO.

A.D. 1926

The within-named _____ consenting
the within-mentioned time for repayment of the within-mentioned
principal sum of _____
is hereby extended to the _____ day of _____
one thousand nine hundred and _____ [and the interest
to be paid thereon on and from the _____ day of _____
one thousand nine hundred and _____ is hereby
declared to be at the rate of _____ per centum per
annum].

Dated this _____ day of _____ one
thousand nine hundred and _____

FORM OF TRANSFER OF MORTGAGE.

I [the within-named] _____ [of
sum of _____] in consideration of the
_____ pounds paid to me by
_____ of
(hereinafter referred to as "the transferee") do hereby transfer
to the transferee [his] executors administrators and assigns [the
within-written security] [the mortgage number _____ of
the revenues of the Rhymney Valley Water Board bearing date
the _____ day of _____] and all my right
and interest under the same subject to the several conditions on
which I hold the same at the time of the execution hereof and I
the transferee for myself my executors administrators and assigns
do hereby agree to take the said mortgage security subject to the
same conditions.

Dated this _____ day of _____ one
thousand nine hundred and _____

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